Program Name: JACK IN THE BOX (HI)

Program ID : PRG-1010654

Operator: JACK IN THE BOX

Effective Dates: August 1, 2015 through June 30, 2016

Price Type:

We are pleased to confirm pricing information for orders placed between August 1, 2015 and June 30, 2016 for the below named operators. During this time period, orders placed by operators through your authorized distributor will be priced by Kraft to your authorized distributor at a maximum of the type for the product(s) found in the pricing table (showing prices, allowance and contract volume).

The prices do not include any distributor mark-up or distributor surcharges. Distributor mark-ups and other distributor charges are to be negotiated solely between the distributor and operator.

This letter deals with pricing, compliance and confidentiality matters only and is not to be construed as a guarantee of product availability or supply.

Sincerely,

Howard Gasser

Kraft Representative

List of Authorized Operators

Operator Number	Operator Name	Address
0200075194	JACK IN THE BOX	9330 BALBOA AVE SAN DIEGO CA 92123-1598

List of Authorized Distributors

Customer Number	Company Name	Address
0200041380	MBM CORP - SUMNER PFC	4301 W VALLEY HWY E STE 400 SUMNER WA 98390-9713
0200754427	MBM CORP - BUENA PARK	6800 ARTESIA BLVD BLDG 4 BUENA PARK CA 90620-1015
0200388135	MBM CORP - FULLLERTON	500 BURNING TREE RD FULLERTON CA 92833-1400
0100010296	MBM CORP - MANTECA	800 MELLON AVE MANTECA CA 95337-6135
0200862473	MBM CORP - ONTARIO	1051 WINEVILLE AVE ONTARIO CA 91764-5360
0100032147	MBM CORP - PHOENIX	4302 W BUCKEYE RD STE 100 PHOENIX AZ 85043-4904
0200226901	MBM CORP - PLEASANTON	5675 SUNOL BLVD PLEASANTON CA 94566-7765
0200175225	MBM CORP - RIVERSIDE	1050 PALMYRITA AVE RIVERSIDE CA 92507-1700
0200805222	MBM CORP - SALISBURY	40 CIRCLE MTH DR SALISBURY NC 28147-9277
0200282230	MBM CORP - TAYLORVILLE	600 S SPRESSER ST TAYLORVILLE IL 62568-9288
0200729325	MBM CORP - TRACY	26030 S CORPORATE CT TRACY CA 95377-8862
0100028003	MBM CORP DALLAS	4721 MOUNTAIN CREEK PKWY DALLAS TX 75236-4601
0100015122	MBM CORP SUMNER 57	4301 W VALLEY HWY E STE 400 SUMNER WA 98390

PRG-1010654 - Fixed Price

SCC#	Product Description	Invoice Price Pays To: Distributor
00210006648500	KR 200 7/16Z MAYO	$11.20 / CS

RATE INFORMATION
The contract rate per item will be stated as follows:
I. Headquarter Rebate defined as a percent unit basis.

DETAILS
I. This pricing confirmation applies to all net purchases of eligible products by qualified locations for the time periods specified above. Net purchases are defined as gross sales dollars less returns, credits, cash discounts, and taxes. Invoices not paid within terms or invoices on which unauthorized deductions are taken will not be included in net purchases. Net purchases do not include orders where the Contractee does not take title to the product.
II. Headquarter Rebate (%) – Selection for the unit basis value is customer invoice price.
III. Supporting Documentation is required for all Allowance requests:
> Distributor Name with company location and Contract Number
> Kraft contract number
> Shipment dates for each sales transaction
> Customer name, Distributor customer number, rate of rebate by product along with complete unit address information
> Kraft product code number or GTIN number
> Description of product item pack, size, item brand & UOM
> Total cases purchased
> Requested case rates per product and total rebate dollar amount per product
IV. Kraft Foodservice reserves the right in its discretion to amend, revise, or terminate this pricing confirmation at any time upon 15 days' notice.
V. This pricing confirmation does not automatically renew and is only applicable to the dates stated above.

PAYMENT CALCULATION & SETTLEMENT
I. Kraft will review Headquarter Rebate submissions for errors. Kraft may approve or deny submissions in its reasonable discretion.
II. Headquarter Rebate (%): The calculation will be determined by multiplying the Headquarter Rebate % by the customer invoice price.

CLAIM SUBMISSION
I. Billback claims should be directed to Blacksmith Applications. Please reference the Contract ID # above on claim submission.
II. Electronic submission is the preferred method for Billback claim settlement. Blacksmith Applications can accept electronic data transmission via EDI, FTP retrieval or email. Our file preference would be EDI, formatted text delimited, Excel, or CSV formats. If you are interested in electronic claims submission please send email to the address listed below.
III. Please include the Contract ID # in all communications
IV. Billback claims sent via email should be directed to the following address: kraftclaims@blacksmithapps.com
OR mail paper claims to:
Kraft Foods Group – Claims Processing
P. O. Box 15887
Pittsburgh, PA 15244
V. Collection of Allowances and/or Rebates: Subject to any provision to the contrary of these terms, Kraft will only pay claims for eligible goods sold within 365 days of the submitted date.

The information transmitted is intended only for the person or entity to which it is addressed and may contain confidential and/or privileged material. Any review, retransmission, dissemination or other use of, or taking of any action in reliance upon, this information by persons or entities other than the intended recipient is prohibited. If you received this in error, please contact the sender and delete the material from all computers.